

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 14, RICHMOND  
JUDICIAL OFFICER: KIRK ATHANASIOU  
HEARING DATE: 03/17/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email [Dept14@contracosta.courts.ca.gov](mailto:Dept14@contracosta.courts.ca.gov) and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

**Zoom hearing information**

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

**Law & Motion**

1. 9:00 AM CASE NUMBER: L21-06068  
CASE NAME: CAPITAL ONE BANK (USA),N.A. VS. JEFFREY KRATO  
\*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION  
FILED BY: CAPITAL ONE BANK (USA),N.A.

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.  
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

A proof of service indicates that Plaintiff served Defendant with notice of this Motion by

mail. However, the mailing address on the proof of service differs from that where Defendant was personally served with process. What's more, Defendant has never filed anything with the court that indicates his mailing address. Thus, there is insufficient evidence to suggest Defendant was served with notice of this Motion. plaintiff.

Disposition

Plaintiff's Motion is continued to 5/26/26, 9am, for Plaintiff to serve Defendant with notice of this Motion.

Plaintiff to file order on Motion.

**2. 9:00 AM CASE NUMBER: L22-03034**

**CASE NAME: JPMORGAN CHASE BANK N.A. VS. KIRSTEN SANDSTROM**

**\*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 12/30/25**

**FILED BY: JPMORGAN CHASE BANK N.A.**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in